

Appendix: Product Return Procedure

Return procedure for products, including approval, condition check, documentation and settlement impact.

Working legal/commercial draft. This translated version is prepared for reading, download and local counsel review before use in the selected country.

1. Return Approval

Returns require prior confirmation unless local mandatory law gives the customer or Partner a non-excludable right.

2. Condition

Returned products should be identified, counted and checked for use, damage, missing parts and packaging condition.

3. Settlement

The settlement effect of a return depends on the approved reason, time, condition and local law.

Country localisation matrix

Market | Adaptation

UK | Use UK governing law and jurisdiction where applicable; review UK GDPR, PECR, product liability and B2B sale terms.

USA | Use state-specific law and venue; review business opportunity/franchise triggers, earnings claims, warranty, sales tax and privacy rules.

Canada | Use province-specific law; review CASL, privacy, bilingual requirements where applicable, warranty, tax and product safety.

Australia | Review Australian Consumer Law, unfair contract terms, privacy, product safety, warranty, import and tax clauses.

South Africa | Review POPIA, electronic communications, Consumer Protection Act exposure, product liability, import, tax and dispute wording.

Germany | Use German-law drafting; review BGB/HGB, GDPR/BDSG, UWG marketing rules, warranty, retention of title and standard-term controls.

Austria | Use Austrian-law drafting; review ABGB/UGB, GDPR/DSG, UWG marketing rules, warranty, retention of title and standard-term controls.

Switzerland | Use Swiss-law drafting; review the Code of Obligations, revised FADP, competition rules, warranty and cross-border data transfers.

Local clauses before signature

Area | To review before use

Governing law | Country, venue, language and dispute resolution

Privacy | Roles, notices, consent and data transfers

Product & sales | Warranty, liability, safety, tax and import

Marketing | Electronic communication, claims, testimonials and pricing displays

Document table

Return reason | Required action

Wrong product | Confirm order and replacement

Damage | Use damage/loss protocol

Customer withdrawal | Apply local law and agreed policy

Stock correction | Connect with inventory protocol

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